Louisa County Water Authority
Board of Directors
July 12, 2023

MEMBERS PRESENT: Mr. Judson Foster, Chairman; Mr. Bob Hardy; Mr. David Kies; Mr. Tom Filer; Mr. Byron Wilson

MEMBERS ABSENT: Mr. Douglas Smith, Vice-Chairman; Mr. Robert Morgan

OTHERS PRESENT: Ms. Pam Baughman, General Manager; Mr. Hunter Martin, Water Operations Manager

A. Call to Order

Chairman Foster called the meeting to order at 6:00 pm.

1. ADOPTION OF THE AGENDA

Mr. Foster asked if there were any changes or additions to the agenda. Ms. Baughman asked to add one item to the Short Notice Section – Northeast Creek Dam (South Anna Dam #22). Mr. Hardy made a motion to adopt the agenda as amended. The motion was seconded by Mr. Kies and carried 5-0 among the members present.

B. Presentations

C. Citizen Information

D. Consent Agenda

2. APPROVAL OF THE MINUTES:

A. JUNE 14, 2023 – REGULAR BUSINESS MEETING

3. TREASURER'S REPORT:

A. O & M REPORT / CAPITAL REVENUE & EXPENDITURE REPORT – JUNE 2023
B. APPROVAL OF DISBURSEMENTS – JUNE 2023
C. CONSTRUCTION FUND – JUNE 2023

The Board reviewed the Consent Agenda, including the Treasurer's Report. Upon completion of the review, Mr. Hardy made a motion to approve the Consent Agenda and Treasurer's Report. The motion was seconded by Mr. Kies and carried 5-0 among the members present.

E. Old Business

4. UPDATE – JAMES RIVER WATER PROJECT

The James River Water Authority Board of Directors met July 12, 2023.

The Authority has received written confirmation that they do not need a Virginia Marine Resources Committee permit.

The Department of Environmental Quality draft permit has been received for review by the Authority Board members and the withdrawal amount was granted in the permit. The DEQ permit is for 15 years. Since it is a 15-year permit, some minor issues will be addressed at a meeting next week. Once the permit is re-drafted, it will be advertised for the 30-day public comment period.

The Army Corps of Engineering permit is the Manager's number one priority. They are dealing with two issues: 1) a mussel issues with fish and wildlife, and 2) the cultural resources. This permit is actively being worked on prior to a 15-day public notice, a 30-day public comment period and a 30-day review process by other agencies and interested parties.

Property acquisitions are underway, progress continues.

5. NORTHEAST CREEK WATER TREATMENT PLANT – NECWTP SEDIMENTATION BASINS IMPROVEMENT (SLUDGE-VAC-SYSTEM UPDATE)

The Board was informed that the construction permit has been received from the Virginia Department of Health – Office of Drinking Water and the Request for Proposal is now being advertised. The pre-bid meeting took place on Monday, July 10, 2023. Bids will be received on August 1, 2023. The equipment supplier indicated at the pre-bid meeting that the equipment will take 20 – 25 weeks to be received once ordered.

The General Manager asked if it would be appropriate to request the capital funding from the County of Louisa at this time.

At the conclusion of the discussion, Mr. Filer made a motion to authorize the General Manager to request the Capital Improvement funding approved by the Board of Supervisors for FY2024 for the Northeast Creek Water Treatment Plant – Sedimentation Improvement (Sludge-Vac System). The motion was seconded by Mr. Kies and carried 5-0 among the members present.

6. ZION CROSSROADS WELL SYSTEM UPDATES

Spring Creek #1 & 2 has been on hold while contractors cycle through vacations. Staff is hopeful that work will pick back up by the end of July 2023.

Spring Creek # 3 has been pumping fine since the pump was replaced.

7. REGIONAL OPTIMIZATION AND PROCESS OPERATIONS STUDY

Due to a glitch in the Bio-Win program, we have not received the draft Optimization and Process Operations Study yet; however the engineer feels we should receive it this week.

8. ZION CROSSROADS WWTP DIESEL TANK ADDITION FOR GENERATOR

The pad was prepped and poured, the tank installed, pressurized and inspected by the County of Louisa. Start-up occurred on Friday, July 7, 2023. Nancy Pugh, Chief Operator for Zion Crossroads Wastewater Treatment Plant stated that Advanced Fueling Systems, Inc. went above and beyond the contracted installation agreed upon. One part does not seem to be working correctly, AFS will be onsite to check the part and replace it if necessary.

9. NEW TRUCK PURCHASE; SNOWPLOW AND 100-GALLON DIESEL TRANSFER TANK

The new truck has its computer chips, the emergency lights and snowplow prep-package has been installed. Staff picked it up this morning.

10. OPEN POSITIONS

A. MAINTENANCE TECH

For the first time in over two years, the Authority is fully staffed! Levi Goodman started July 1, 2023, and is learning everything about the water and sewer business.

11. UPDATE – LAKE ANNA ENVIRONMENTAL WWTP

A. LAKE ANNA WWTP – WELL #1
B. DIVER REPAIR AND INSPECTION

The County of Louisa wanted to move forward with exploring Well #1 at Lake Anna. The proposal has been signed and the work will commence as Royall Well Pump and Motor's schedule allows.

The diver had the line pinned down for the 4th of July weekend. The inspection, additional line pinning down and lake bottom cleanup was completed July 11, 2023.

The letter and related documents requesting identifying buoys is complete and will be submitted once the checks have been printed and signed.

We will incur a violation this month for TSS. Our TSS limit is 30 and we reported an exceedance of 31.1. Randy is looking at replacing some of the blowers. They have been repaired but continue to break down. We will need more reliability if we want to maintain compliance with our DEQ permit.

The General Manager asked the Board if it would be acceptable to make another $100,000 request from the County to finalize improvements to maintain compliance at the WWTP and maintain water quality.

At the conclusion of the discussion, Mr. Filer made a motion to authorize the General Manager to request an additional $100,000 in funding for the Lake Anna water and sewer facilities and to provide a separate accounting for all costs associated with the facilities repairs and improvements. The motion was seconded by Mr. Hardy and carried 5-0 among the members present.

12. UPDATE – CLEARWELL ROOF / BASEMENT FLOOR DRAINAGE

The kick-off meeting took place on June 26, 2023. The work is scheduled for the first part of August 2023. The original budgeted amount for this project was $150,000 decreased to $130,000 providing the transference of an additional $20,000 to the Nanofiltration grating evaluation / Upgrade to access / Pallet jack project. The cost to complete the project is $84,092.

13. UPDATE – NANOFILTRATION GRATING EVALUATION / UPGRADE TO ACCESS / PALLET JACK

The Nanofiltration Building access has been corrected and the grating shored up. The only item to complete this project is the addition of a pallet jack. The original project amount was $60,000, increased to $80,000 by transferring $20,000 from the Clearwell roof / Basement floor drainage project. After the access excavation ($44,695) and the cost to shore up the grating system ($28,023), the project has a balance of $7,282 to purchase the pallet jack and cover the engineering costs. Staff solicitated one quote for a pallet jack at a cost of $8,162.

The General Manager requested an additional transfer of funds from the Clearwell Roof / Basement floor drainage project in the amount of $15,000 to cover the cost of engineering and a pallet jack.

Upon completion of the discussion, Mr. Filer made a motion to provide an additional $15,000 to the Nanofiltration Grating / Upgraded Access / Pallet Jack project to cover the final expenses. The motion was seconded by Mr. Kies and carried 5-0 among the members present.

14. WATER SUPPLY EMERGENCY ORDINANCE

A. PROPOSED EMERGENCY RATE SCHEDULE

The General Manager reported to the Board that Old Dominion Electric Cooperative (ODEC) is twenty years into a forty-year contract for purchasing raw water at .50¢/1,000. This contract is renewable for an additional ten years beyond the forty-year contract. After speaking with the Economic Development Director regarding a potential business locating to Louisa, a contract amount for raw water can be reached through a contract instead of having an advertised rate.

The General Manager proposed an increase of $7.00/1,000 for bulk water sold from a hydrant and a surcharge for water sold over 3,000 gallons a month to 6,500 gallons a month of $45 and for any water over 6,500 gallons a month a $90 surcharge.

The General Manager provided the percentage of customers found in each usage category, in increments of 1,000 over the 3,000 minimum.

At the conclusion of the discussion, the Board asked the General Manager to re-draft the Public Hearing Notification to reflect a $25/1,000 proposed rate for bulk water. They also asked to clearly separate the emergency rates from the bulk water proposed increase with some language from the Emergency Water Supply Ordinance, to show a rate 6 and 12 times the current rate as the surcharge rate during emergencies and to 3,000 – 6,000 gallons and over 6,000 gallons.

These changes will be considered at the August Board of Directors Meeting.

15. LEAD SERVICE LINE INVENTORY

Nellie Clatterbuck has begun gathering administrative date for the Lead Service Line Inventory.

16. BOWLERS MILL – CONDITIONAL OPERATION AND MAINTENANCE CERTIFICATE

Mr. Christian Goodwin, County Administrator and the General Manager collaborated to suggest alternative language on the Conditional Operation and Maintenance Certificate for Bowlers Mill Dam. The suggestion to the Department of Conservation and Recreation was the removal of the language in the Alteration Permit section, "To be completed by Saturday, September 30, 2023." And replaced with, "To be completed in accordance with timing of available state funding for dam rehabilitation." What we got, "Contingent on Natural Resources Conservation Service (NRCS) funding submit an Alteration Permit application in accordance with the provisions of Section 4VAC50-20-80 of the Virginia Impounding Structure Regulations. Application should address the inadequate spillway design as well as deficiencies noted in the 2022 Engineer Inspection. To be completed by Saturday, September 30, 2023.

This language was included for the Alteration Permit and Complete Improvements sections.

17. FIRE HYDRANT DAMAGE

The Board was informed that both fire hydrants damaged by VDOT contracted mowers have been replaced and are now back online. The cost of Central Virginia Contractors was significantly lower than the estimated rate of over $11,092 per hydrant to $2,300 for one hydrant and $2,200 for the second hydrant.

F. New Business

18. PROPOSAL – REPLACEMENT OF TOWN OF LOUISA METERS

The Board was informed that the meters to the Town of Louisa have stopped recording flow. Office staff are averaging past months to bill the Town for water. Staff has been in contact with companies that calibrate the meters, but they feel the meters are too old and it would be better to replace them. The current meters have been in service for over 40 years. A pipefitting company would need to do this work and the ones we have contacted are not available until after August / September time frame. The General Manager proposed to the Board to purchase the material, due to supply chain issues, the material needed to complete the replacement of the meters could take a while to arrive. The material needed would be 6" Omni + C2 10-gallon Itron 24" meters at a cost of $6,200 each meter, for a total of $12,400 and the additional material less the meter $6,294.94 for each Town meter vault (there are two). Total material cost of $24,989.88.

Upon completion of the discussion, Mr. Filer made a motion to purchase the material needed to replace the Town of Louisa meters in the vaults located on Rt.22 (Davis Highway) and Rt. 33 (Jefferson Highway) and to advertise for a pipe fitting company to install the meters and related piping. The motion was seconded by Mr. Wilson and carried 5-0 among the members present.

19. PROPOSAL – ADDITION OF WATER TO ST. FRANCIS AND LAGOON PUMP STATIONS

Staff requested proposals from Central Virginia Contracting for adding water service to the St. Francis and Lagoon Pump Stations. The proposal for both pump stations were included in the agenda packet. The General Manager proposed moving forward with the addition of water at the St. Francis pump station to gauge the cost for the installation, as Central Virginia Contractors indicated that they proposed high. (As an example; Central Virginia Contractors proposed a cost of $11,092 to replace the hydrant at Barton & Boyd and charged $2,211. For the hydrant at Chalklevel the proposed cost was $11,092 and bill was $2,372.)

The Board requested the General Manager ask Central Virginia Contractors to reevaluate the proposals for installing water service at the St. Francis and Lagoon Pump Stations.

20. PROPOSAL – HIRING A FOURTH WATER PLANT OPERATOR

Hunter Martin has indicated that he plans to retire at the end of April 2024. Due to the continued growth in the central part of the County, including a lettuce farm in the Industrial Park, a fourth position will be required. This fourth water plant operator position has been budgeted for this fiscal year. The General Manager proposed that the Authority begin advertising and looking for someone to train to operate the Northeast Creek Water Treatment Plant. After January 1, 2024, we should consider hiring another operator to take the position Hunter will be vacating.

Mr. Filer made a motion to authorize the advertising for a fourth water plant operator position. The motion was seconded by Mr. Kies and carried 5-0 among the members present.

G. Reports

H. General Manager's Report

● **June levels**: At the end of June the static well levels are up approximately 9.5 feet from the end of May 2023 levels. From June 2022 to June 2023, the well levels are up approximately 7.5 feet.

The smaller table shows static well levels located nearer to the production wells. These levels are up approximately 31 feet from the end of May 2023 levels. From June 2022 to June 2023, the well levels are up approximately 32.25 feet.

As of July 10, 2023, the Department of Environmental Quality Drought website is indicating normal conditions exist for groundwater, streamflow, precipitation and reservoir levels.

● The current past-due listing is down to $5,048.25 from the past-due listing provided in the General Manager's Report, which reported the past-due balance of $6,997.30.

I. Committees

Personnel Committee – The Personal Committee is scheduled to meet on July 26, 2023, to discuss Job Descriptions and pay grades.

J. Short Notice Items

NORTHEAST CREEK DAM (SOUTH ANNA #22)

The General Manager shared with the Board the Conditional Operation and Maintenance Certificate for the Northeast Creek Dam (South Anna #22) and asked if the Board would be amenable to applying for NRCS funding to assist with the costs associated with the design and upgrades needed at the Northeast Creek Dam (South Anna #22).

Upon completion of the discussion, Mr. Filer made a motion to authorize applying for funds to assist with the cost of designing and construction upgrades needed to improve the Northeast Creek Dam to current standards. The motion was seconded by Mr. Kies and carried 5-0 among the members present.

K. Closed Session

21. Closed Session pursuant to Va. Code Section 2.2-3711(A)(3) Discussion or consideration of the acquisition of real property for a public purpose, or of the disposition of publicly held real property, where discussion in an open meeting would adversely affect the bargaining position or negotiating strategy of the public body.

22. Closed Session pursuant to Va. Code Section 2.2-3711(A)(7) Consultation with legal counsel and briefings by staff members or consultants pertaining to actual or probable litigation, where such consultation or briefing in open meeting would adversely affect the negotiating or litigating posture of the public body.

Mr. Hardy made a motion to close the regular open meeting and immediately reconvene in executive closed session for discussion or consideration of the acquisition of real property for a public purpose, or of the disposition of publicly held real property, where discussion in an open meeting would adversely affect the bargaining position or negotiating strategy of the public body, and consultation with legal counsel and briefings by staff members or consultants pertaining to actual or probable litigation, where such consultation or briefing in open meeting would adversely affect the negotiating or litigation posture of the public body. The motion was seconded by Mr. Kies and carried 5-0 among the members present.

RETURN TO OPEN MEETING:

Chairman Foster closed the closed session and immediately reconvened in regular open meeting at 7:04 pm.

CERTIFY:

Mr. Foster read the following statement prior to the vote to certify the closed session.

"Pam will now poll members to certify that, to the best of your knowledge, only public business matters lawfully exempted from the open meeting requirements under the Virginia Freedom of Information Act, and as identified in the motion for which the closed meeting was convened, were discussed, and considered by the Board. If any member believes that the Board varied from the purpose stated for the closed meeting, please state so and the reason prior to casting the vote." A roll call vote was requested with the following results:

Mr. Foster	YES
Mr. Smith	ABSENT
Mr. Filer	YES
Mr. Hardy	YES
Mr. Kies	YES
Mr. Morgan	ABSENT
Mr. Wilson	YES

The motion was carried 5-0 among the members present.

Next meeting date - The next business meeting is scheduled for August 9, 2023.

L. Adjournment

THERE BEING NO FURTHER BUSINESS, Mr. Filer made a motion to adjourn at 7:10 pm. The motion was seconded by Mr. Wilson and carried 7-0 among the members present.

BY ORDER OF:

Judson Foster
Chairman
LOUISA COUNTY WATER AUTHORITY